

No.

Date

F.N. N0/52/2025-NeGD

Date: 22 April 2026

Subject: Notification of empanelment done through Request for Empanelment (RFE) for AI/ML Manpower Augmentation and AI-Driven Project Delivery under Digital India Programme, floated at Central Public Procurement Portal (CPPP) vide Tender ID 2025_DIT_885957_1.

With reference to the subject, bids were invited from agencies for the following scope: AI/ML Manpower Augmentation and AI-Driven Project Delivery under Digital India, being part of NeGD's broader effort to create sustainable institutional capacity for Artificial Intelligence (AI) within the Government by establishing a dedicated pool of AI/ML partner agencies to address AI-specific requirements across domains such as citizen services, analytics, process optimisation, and automation.

Based on the received bids and the subsequent evaluation and agreement on the standard rate discovered, the following agencies are hereby empanelled for a period of two (2) years from the date of issuance of this LoE, extendable by up to one additional year on the same terms subject to satisfactory performance and continued relevance of discovered rates:

Sr. No.	Empanelled Agency
1	Cactus Technology Solutions Private Limited (CTSPL)
2	CoRover Private Limited
3	Innefu Labs Ltd.
4	Kyndryl Solutions Private Limited
5	NEC Corporation India Pvt. Ltd.
6	Tata Consultancy Services Ltd.

The contact details of the empanelled agencies, the discovered rate card for identified roles, and details including general terms are enclosed at Annexure 1, 2 and 3 respectively.



Central Government Ministries/Departments, State Government Departments, public sector undertakings, and their organisations can make use of this empanelment for award of work, with information to NeGD. For engagements executed directly by such entities (without routing through NeGD), payment terms, SLAs, and performance evaluation shall be as determined by the concerned Government entity in accordance with its own applicable procurement and financial rules, with the Standard rate card and rate compliance obligations of this LoE continuing to apply.

Yours faithfully,



(Aditi Singh)

अदिति सिंह / Aditi Singh
निदेशक / Director
राष्ट्रीय ई-गवर्नेंस प्रभाग
National eGovernance Division
इलेक्ट्रॉनिक्स और सूचना प्रौद्योगिकी मंत्रालय
Ministry of Electronics and Information Technology

Director, National e-Governance Division

Digital India Corporation, Ministry of Electronics and Information Technology

Electronics Niketan, 6 CGO Complex, Lodhi Road, New Delhi – 110003

Email: director.pm@digitalindia.gov.in

Enclosures: Annexure 1 – Contact Details | Annexure 2 – Discovered Rate Card | Annexure 3 – General Details

ANNEXURE 1 – CONTACT DETAILS

Empanelled Agency: Cactus Technology Solutions Private Limited (CTSPL)

Field	Primary Contact	Secondary Contact
Name	Siddharth Varshney	Ravi Mehar
Title	Head, AI Solutions	National Sales Head
Company Name	Cactus Technology Solutions Private Limited (CTSPL)	Cactus Technology Solutions Private Limited (CTSPL)
Address	A-703, Satellite Gazebo, Guru Hargovindji Marg, Andheri East, Mumbai – 400093, Maharashtra.	A-703, Satellite Gazebo, Guru Hargovindji Marg, Andheri East, Mumbai – 400093, Maharashtra.
Phone	+91-22-6714-8888	+91-22-6714-8888
Mobile	+91 98190 36261	+91 98991 30975
E-Mail	meity@cactusglobal.com	meity@cactusglobal.com

Empanelled Agency: CoRover Private Limited

Field	Primary Contact	Secondary Contact
Name	Siddharth Dhar	Kunal Bhakhri
Title	Sr. Vice President Government Business	Director Operations
Company Name	CoRover Private Limited	CoRover Private Limited
Address	1st Floor, A Block, BHIVE Workspace, HSR Campus, Hosur Road, Bengaluru 560068	1st Floor, A Block, BHIVE Workspace, HSR Campus, Hosur Road, Bengaluru 560068
Phone		
Mobile	8700317571	9906257399
E-Mail	siddharth@corover.ai	Kunal.bhakhri@corover.ai

Empanelled Agency: Innefu Labs Ltd.

Field	Primary Contact	Secondary Contact
Name	Shatakshi Srivastava	Hemraj
Title	Founder's Office	Admin Head
Company Name	Innefu Labs Pvt. Ltd.	Innefu Labs Pvt. Ltd.
Address	110-111, 1 st floor, PP Trade Centre, Netaji Subhash Place, Pitampura, New Delhi -110034	110-111, 1 st floor, PP Trade Centre, Netaji Subhash Place, Pitampura, New Delhi -110034
Phone		
Mobile	+91 8178714665	+91 9650446034
E-Mail	shatakshi.srivastava@innefu.com	hemraj@innefu.com

Empanelled Agency: Kyndryl Solutions Private Limited

Field	Primary Contact	Secondary Contact
Name	Deepak Shioran	Sanskriti Sharma
Title	Associate Partner - Kyndryl Consult	Customer Technology Advisor
Company Name	Kyndryl Solutions Private Limited	Kyndryl Solutions Private Limited
Address	Ground Floor, Tower A Building 8, DLF Cyber City Gurugram, Haryana - 122002	Ground Floor, Tower A Building 8, DLF Cyber City Gurugram, Haryana - 122002
Phone		
Mobile	9599599601	6290560988
E-Mail	deepak.shioran@kyndryl.com	sanskritisharma@kyndryl.com

Empanelled Agency: NEC Corporation India Pvt. Ltd.

Field	Primary Contact	Secondary Contact
Name	Raju Kumar Sharma	Peeush Chaudhary
Title	Senior Business Development Manager- Artificial Intelligence Platform (AIPF)	Group Manager – Presales (AIPF)
Company Name	NEC Corporation India Pvt. Ltd.	NEC Corporation India Pvt. Ltd.
Address	Unit No. C -1901, 19 th Floor, Tower – C, Advant Navis Business Park, Plot No. 7, Sector – 142, Noida – 201305, Uttar Pradesh, India	Unit No. C -1901, 19 th Floor, Tower – C, Advant Navis Business Park, Plot No. 7, Sector – 142, Noida – 201305, Uttar Pradesh, India
Phone		
Mobile	9987092274	8826694407
E-Mail	rajukumar.surajnaths@india.nec.com	Peeush.chaudhary1@india.nec.com

Empanelled Agency: Tata Consultancy Services Ltd.

Field	Primary Contact	Secondary Contact
Name	Nishit Srivastava	Vikram Kumar
Title	Business Development Manager	Director – PS India
Company Name	Tata Consultancy Services Ltd.	Tata Consultancy Services Ltd.
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Phone		
Mobile	9810232755	+91 8377001399
E-Mail	nishit.sri@tcs.com	vikram1.k@tcs.com



For any further details on the notification and the RFE, the following officers may be contacted:

NeGD Contact Details

Field	Primary Contact	Secondary Contact I	Secondary Contact II
Name	Director (Program Management and HR)	Aashita Dagar	Akshansh Kumar
Organisation	National e-Governance Division (NeGD)	National e-Governance Division (NeGD)	National.e-Governance Division (NeGD)
Address	Electronics Niketan, 6 CGO Complex, Lodhi Road, New Delhi – 110003	Electronics Niketan, 6 CGO Complex, Lodhi Road, New Delhi – 110003	Electronics Niketan, 6 CGO Complex, Lodhi Road, New Delhi – 110003
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ANNEXURE 2 – DISCOVERED RATE CARD

Rates discovered for each role identified under the RFE are as follows:

S.No.	Role	Minimum Work Experience	Key Responsibilities (Indicative)	Unit Rate INR / Month (Without GST)
1	AI / Solution Architect	10+ years (including 5 years in AI/ML system design)	Design end-to-end AI architectures; integrate with enterprise platforms; define APIs and standards; ensure scalability and security; mentor teams.	4,58,500
2	Program Manager	10+ years (including 3 years in AI programme delivery)	Product ownership, citizen-facing delivery, OKRs, and AI product lifecycle management	4,12,500
3	Business Analyst	5+ Years	Gather and document requirements; map use cases to technical solutions; validate outputs against business needs; support user acceptance.	2,16,666
4	Data Science Lead	8+ Years	Perform EDA and feature engineering; evaluate datasets; guide model selection, validation and evaluation.	4,58,500
5	Data Engineering Lead	8+ Years	Architect data pipelines and storage; define governance and lineage; mentor Data Engineers on ETL and real-time data flows.	3,66,666
6	AI / ML Lead	7+ Years	Lead model design and prototype development; define fine-tuning approaches; evaluate model suitability.	4,58,334
7	MLOps Lead	6+ Years	Design deployment and monitoring pipelines; define infrastructure requirements for inference and automation.	3,20,834
8	AI / ML Engineer	4+ Years	Develop, train and validate models for NLP, CV and	3,20,834

			automation; integrate into production APIs.	
9	Data Scientist	4+ Years	Prepare datasets; train and test models; collaborate with ML Engineers for deployment and optimisation.	3,20,834
10	Data Engineer	3+ Years	Build ETL pipelines; manage structured/unstructured data; ensure quality and interoperability.	2,75,000
11	MLOps Engineer	3+ Years	Implement CI/CD for AI workflows; automate deployment and model monitoring; maintain SLA compliance.	2,29,166
12	AI QA Engineer	4+ Years	Design test plans; conduct functional and regression testing; ensure Responsible AI and data-protection compliance.	2,29,166

Notes:

1. Rates include all applicable costs such as salary, statutory benefits, administrative overheads, training, insurance, equipment (if applicable), and any incidental expenses, exclusive of applicable taxes.
2. If niche or specialised roles are requested by NeGD or the concerned Government Entity, the same shall be billed at 1.5 times the cost of an AI/ML Engineer, subject to prior written approval and justification from NeGD or the concerned Government Entity.
3. For niche or specialised roles, the deployment timeline shall be within one hundred and twenty (120) calendar days of the Work Order or as per RDR or RFQ. The early deployment incentive shall apply to niche roles if deployment is completed within thirty (30) calendar days of RDR issuance.
4. An upward rate revision of up to 10% per annum may be proposed by NeGD at the time of each annual review, subject to NeGD's internal approvals and formal written amendment to this LoE. NeGD reserves the right to vary or waive the revision threshold. No revision shall take effect without a formal written amendment.
5. Detailed educational qualifications, technical competencies, and role-specific experience requirements for each role are as set out in the RFE and the Corrigendum/Addendum thereto, which are incorporated by reference into this LoE.
6. Note on Role 2: The role designated 'Program Manager' in the rate card was redesignated 'Product Manager (AI)' in the Corrigendum/Addendum dated 16 December 2025 for the purposes of the detailed job description. The rate and minimum experience criteria remain as evaluated. Detailed responsibilities and qualifications for this role as per the corrigendum shall apply.

ANNEXURE 3 – GENERAL DETAILS

Introduction

National e-Governance Division (NeGD) is an autonomous business division within Digital India Corporation, a Section 8 company under the Ministry of Electronics and Information Technology, Government of India. This LoE is issued by NeGD to facilitate the deployment of AI/ML expertise and services by NeGD and other eligible Government entities, at the approved rates discovered through an open and competitive RFE process. The empanelled agencies constitute a pre-qualified panel of capable AI/ML partner agencies that may be engaged by NeGD and other eligible Government entities as may be required from time to time.

Scope of Services

With Rate Standardization, these empanelled agencies shall serve as NeGD's pre-qualified AI/ML partner agencies, providing specialised AI/ML expertise and services to NeGD and other eligible Government entities as part of the Digital India initiative. The empanelled agencies shall be capable of providing support across the full spectrum of AI/ML requirements, including but not limited to:

- Deployment of specialised AI/ML professionals on-demand to augment NeGD's and other Government entities' existing teams, either directly or through NeGD coordination.
- End-to-end AI project support through deployed teams – from problem identification and definition to solution prototyping, model development, deployment, and monitoring.
- Design, development, deployment, and management of AI-driven solutions and AI services, including building reusable AI components, APIs, and infrastructure under Digital India.
- Implementing NeGD's or other Government organisations' AI Services and related model infrastructure.
- Participating in and running pilot programmes and Proof of Concepts (POCs).
- Conducting Responsible AI compliance testing and data governance activities.

Engagement Models

Depending on the nature and requirements of the procuring entity, engagements under this LoE may be structured, including but not limited to, the following modes:

- i. **Manpower Augmentation:** Deployment of individual AI/ML professionals by the empanelled agency to augment existing teams of NeGD or other Government entities, governed by a Resource Deployment Request (RDR) and billed at the approved standard rate card of this LoE.
- ii. **AI Project Team Delivery:** Deployment of a defined team of AI/ML professionals by the empanelled agency to deliver a specified project scope or set of deliverables under a Request for Quotation (RFQ), with team composition based on technical assessment of the agency's proposal, billed at the approved standard rate card of this LoE.
- iii. **As a Multi-Vendor Pre-Qualified Panel for Turnkey AI Projects:** The empanelled list of agencies may also be utilised as a pre-qualified multi-vendor panel from which a specific

agency can be selected through a competitive Request for Quotation (RFQ) process for each assignment by NeGD or other eligible Government entities, subject to applicable procurement rules and approvals, for end-to-end design, development, deployment, integration, and management of AI-driven solutions under Digital India.

The specific process, deliverables, timelines, payment terms, and SLAs for each engagement shall be defined in the respective RFQ or RDR issued under this LoE. For engagements routed through NeGD, all terms of this LoE apply unless the applicable RFQ or RDR expressly provides otherwise. For engagements where eligible Government entities engage empanelled agencies independently, the standard rate card, rate compliance obligations, replacement obligations, and confidentiality terms of this LoE shall apply; payment structure, performance evaluation framework, and associated SLAs shall be determined by that Government entity under its own procurement and financial rules.

The indicative procedures that may be followed for each of the above-mentioned three modes of engagement are outlined below:

Manpower Augmentation (RDR-Based)

Where NeGD or a participating Government entity requires specialised AI/ML professionals to augment existing teams, build specific components, or provide on-demand technical expertise, the engagement may be executed through a Resource Deployment Request (RDR). The engagement shall be governed by the manpower rate card of this LoE.

1. **Issuance of RDR:** A detailed RDR outlining the specific role(s), number of resources required, expected duration, work location, and if applicable domain expertise needed will be issued to empanelled agencies.
2. **Candidate Submission:** Empanelled agencies shall nominate qualified candidates by submitting detailed CVs and profiles within the stipulated timeframe. No new financial proposal is required, as billing is strictly bound to the established rates.
3. **Screening and Selection:** NeGD or the concerned Government entity may evaluate nominated candidates through technical screening, interviews, and profile reviews. Selection of resources may be conducted on a best-fit or first-available basis or as per the process set out in the RDR.
4. **Deployment:** Upon successful technical selection, a Work Order (WO) shall be issued to the agency based on the manpower rate card of this LoE for the respective roles selected. The agency must deploy the approved resource(s) within sixty (60) calendar days of WO issuance or as per the WO.
5. **Incentive for Early Deployment:** Upon issuance of an RDR, if the empanelled agency successfully deploys the required manpower within thirty (30) calendar days from the date of RDR issuance, the agency shall be eligible for a one-time incentive of five percent (5%) on the first month's invoice, calculated on a pro-rata basis for the deployed resource(s).
6. **Payment Structure:** Payments shall follow the standard structure of sixty percent (60%) monthly manpower component and forty percent (40%) quarterly deliverables component for applicable NeGD projects, as further detailed in the Payment Process clause below.
7. **SLAs:** The standard SLA framework governing deployment timelines, resource availability, replacement, and applicability assessment reports shall apply for Work Orders issued



under RDRs routed through NeGD, as detailed in the Service Level Agreements clause below.

8. **Performance Bank Guarantee:** For every RDR issued by or through NeGD under this empanelment, the selected agency shall furnish a Performance Bank Guarantee (PBG) of three percent (3%) of the total value (excluding taxes) of the manpower deployment under that RDR. For engagements executed directly by eligible Government entities, security requirements including any PBG shall be governed by the terms of the applicable contract issued by that entity.

AI Project Team Delivery under Request for Quotation (RFQ)

Where NeGD or a participating Government entity requires a defined team of AI/ML professionals to deliver a specified scope of work, the engagement may be structured as follows.

1. **Issuance of RFQ:** A detailed RFQ outlining the functional requirements, problem statement, deliverables, timelines, and indicative resource will be issued to empanelled agencies.
2. **Technical Proposal:** Empanelled agencies may submit a Technical Proposal comprising the proposed solution approach, infrastructure sizing, tools needed, team composition by role, estimated man-months per role, proposed methodology, and delivery plan. The financial cost shall be determined by applying the approved standard rate card to the man-month estimates in the Technical Proposal.
3. **Evaluation and Award:** Proposals may be evaluated either as Quality and Cost Based Selection (QCBS) or Least Cost Selection (LCS) on technical quality, approach, feasibility, and alignment with requirements. The assignment may be awarded to the technically superior proposal whose computed cost (man-months × standard rate card) falls within the approved budget ceiling as per procuring entity.
4. **Payment and SLAs:** Deliverable-linked payment terms and SLAs may be specifically defined in the RFQ and resultant Work Order.
5. **PBG:** A Performance Bank Guarantee (PBG) of three percent (3%) of the total value (excluding taxes) of the manpower deployment under that RFQ shall be furnished by the selected agency prior to commencement of work. For engagements executed directly by eligible Government entities, security requirements including any PBG shall be governed by the terms of the applicable contract issued by that entity.

Empanelment as Multi-Vendor Pre-Qualified Panel for Turnkey AI Projects

1. The empanelled agencies may, subject to applicable procurement rules and approvals, be utilised as a prequalified multivendor panel for the award of turnkey projects involving the design, development, deployment, integration, operation, and management of AI-driven solutions, services, and infrastructure under Digital India initiatives.
2. Such turnkey projects may be awarded by NeGD or by other eligible Government entities — including Ministries, Departments, State Governments, and PSUs — which may, where so decided, reference this empanelment as a qualifying pre-qualification mechanism. Nothing in this LoE shall prevent NeGD or any such entity from using other procurement methods permitted under the applicable rules and General Financial Rules (GFR).



3. For each specific turnkey assignment where this panel is used, the procuring entity may issue a competitive RFQ to all empanelled agencies, and shall select the agency through a transparent competitive process in accordance with applicable procurement guidelines.
4. The specific scope of work, deliverables, timelines, payment structure, SLAs, and other contractual terms for each such turnkey assignment shall be defined in the applicable RFQ and resultant contract.
5. For turnkey engagements where NeGD is the procuring entity, the terms of this LoE shall apply except as expressly modified by the applicable RFQ and resultant contract.

TERMS AND CONDITIONS

1. EMPANELMENT

- 1.1. The validity of the empanelment will be for two (2) years from the date of issuance of this LoE, unless terminated earlier or extended. NeGD reserves the right to extend the validity by up to one additional year on the same terms and conditions, subject to satisfactory performance and continued relevance of discovered rates. Irrespective of the period, the empanelment will be deemed operative until the completion of the assigned projects; accordingly, the empanelled firm shall ensure resource availability until completion of work at hand.
- 1.2. Empanelled agencies will provide AI/ML manpower and related services to NeGD's ongoing and new projects. Such support will be for a definite period and will not amount to any kind of employment obligation on the part of NeGD.
- 1.3. Empanelled agencies will provide their services anywhere in India. For projects routed through NeGD, HR policies of NeGD, as amended and specified for vendor resources, shall be applicable. Travel, relocation and stay requirements (if applicable) will be specified at the RDR or RFQ stage and will be governed by the relevant norms/approvals of the respective Client Entity.
- 1.4. Subcontracting of manpower or project components is permitted with prior written approval of NeGD or the concerned Government Entity. Subcontracting discovered post-facto without such approval will lead to termination of empanelment.
- 1.5. Mere empanelment with NeGD does not guarantee allocation of work.

2. ROLES AND RESPONSIBILITIES

The final roles and responsibilities shall be detailed in the respective RFQ or RDR that shall follow for each engagement. The overall broad scope under this empanelment is given below:

- 2.1 NeGD / Government Entity shall: (a) define the scope of work, deliverables, and reporting mechanisms for each engagement; (b) conduct performance evaluations at defined intervals and review project milestones; (c) facilitate system access and working infrastructure for



deployed personnel; (d) approve timesheets and project deliverables/milestones for payment processing.

- 2.2 Empanelled Agency (as per the mode) shall: (a) provide qualified manpower conforming to the defined roles and experience criteria as per the RDRs; (b) ensure compliance with standard rate card and deployment timelines; (c) maintain payroll, statutory contributions, insurance, and compliance records; (d) replace any underperforming resource as per the replacement policy; (e) submit accurate invoices and timesheets within prescribed deadlines. (f) take full ownership of designing, developing, and delivering complete AI solutions for any turnkey assignments undertaken as per the agreed RFQ.
- 2.3 Deployed Resource shall: (a) perform duties as per the assigned role within the timelines and project mandate; (b) abide by NeGD/Government Entity's information security, confidentiality, and conduct policies; (c) participate in periodic performance reviews and skill upgradation sessions.

3. INFRASTRUCTURE AND TOOLING

Infrastructure, tooling, and compute provisioning arrangements shall be as specified in the applicable RFQ or RDR, in accordance with the RFE and corrigenda issued thereunder.

4. RESOURCE POOL MAINTENANCE AND DEPLOYMENT MANAGEMENT

The resource requisition, screening, and deployment provisions in this clause apply specifically to Manpower Augmentation (RDR-based) engagements. Where applicable, these provisions may also be invoked in team-based and turnkey project engagements as specified in the respective RFQ.

- 4.1 The empanelled agency shall maintain the minimum technical and resource qualifications declared in this LoE. Any material change (such as merger, acquisition, or downsizing) must be notified to NeGD within 15 days. Agencies must maintain an adequate bench of qualified professionals corresponding to the roles listed in this LoE and a shadow bench of equivalent-skilled personnel for immediate replacement in case of attrition. Only those agencies that respond to the RDR or RFQ within the stipulated timelines will be considered for deployment.
- 4.2 Requisition Process: Requests for manpower shall be sent by NeGD or the concerned Government entity to empanelled agencies, who must respond within the timeline specified in the applicable RDR or RFQ. Days mentioned should be read as calendar days unless specified otherwise.
- 4.3 Evaluation and Selection: Candidate profiles shall undergo technical screening prior to placement. Agencies may submit an alternate resource if the originally proposed candidate is unavailable prior to completion of screening, subject to timelines defined in the RFQ or RDR.
- 4.4 Compliance: All statutory and confidentiality obligations shall rest with the empanelled agency. Any required security or access clearances will be specified by the concerned



Government authority at the time of engagement and must be complied with by the deployed resources.

- 4.5 The selected agency shall: (i) deploy approved resources within 60 days (or as per RDR/RFQ) of receiving a confirmed task order; (ii) ensure all personnel deployed meet the minimum qualifications, experience, and skill requirements specified in the JD for each role as specified in the RFE and corrigenda; (iii) identification of niche roles will be carried out by NeGD or the Government Entity on a need basis during the course of engagement.

5. PAYMENT PROCESS

- 5.1 For Work Orders issued under an RDR routed through NeGD, the contract value of such Work Order (exclusive of taxes) shall be apportioned as sixty percent (60%) forming the manpower-based payment component, disbursed proportionately over project period on a monthly basis, and forty percent (40%) forming the deliverable-based payment component, payable quarterly, in accordance with Section 6.9 of the RFE and the corrigenda issued thereunder. All verified invoices will be processed within thirty (30) days of acceptance. Statutory deductions (TDS, GST-TCS, etc.) shall apply as per law.
- 5.2 For engagements executed directly by other eligible Government entities, and for any engagements under this empanelment not structured as RDR-based Work Orders through NeGD, payment terms, SLAs, and performance evaluation shall be as determined by the concerned Government entity in accordance with its own applicable procurement and financial rules. The rate card compliance obligation in Clause 5.3 shall apply to all such engagements.
- 5.3 Irrespective of the mode of engagement or the procuring entity, empanelled agencies shall not charge or offer manpower services at rates differing from the standard rate card set out in Annexure 2 of this LoE. No additional overheads, coordination charges, or incentives shall be claimed. NeGD reserves the right to audit invoices, deployment records, and supporting documentation in respect of engagements routed through NeGD. False or misleading information related to manpower deployment or deliverables shall constitute a material breach; in such cases NeGD may forfeit payments, invoke the Performance Bank Guarantee furnished for the specific resource under the applicable Work Order issued pursuant to the RDR, and initiate de-empanelment proceedings.
- 5.4 Deliverables for the forty percent (40%) component shall be identified during quarterly planning with NeGD and agreed upon by the agency. Deliverable-linked SLAs, their corresponding timelines, and applicable penalties shall be mutually finalised with the selected agency at the time of each engagement, having regard to the nature of the use case and any ministry-specific dependencies. NeGD or the concerned Government entity retains the right to introduce additional SLAs during project award, subject to mutual agreement with the empanelled agency and alignment with the payment terms defined in the RDR.
- 5.5 Any payment delay or dispute in respect of engagements routed through NeGD may be escalated in writing to the Director (Program Management & HR) NeGD, whose decision shall be final and binding, with no prejudice to the Dispute Resolution Mechanism laid down in clause 20 of this LoE.

6. SERVICE LEVEL AGREEMENTS

To ensure accountability and consistent delivery across deployed resources, the selected agency shall adhere to a structured Service Level Agreement (SLA) framework governing all personnel deployed under this LoE. These SLAs will define measurable performance indicators such as timely milestone achievement, quality of deliverables, responsiveness in issue resolution, and adherence to project documentation and reporting standards. The RDR or RFQ may add project-specific details.

S.No.	SLA Area	Description / Target	Linked Payment Component	Penalty / Impact
Manpower-Linked (60%)				
1	Team Deployment	All evaluated resources to be deployed within 60 days of the Work Order	Manpower (60%)	0.5% of manpower payment per week of delay (max 5% of the manpower component for the month)
2	Resource Availability	Minimum 90% presence per resource (excluding pre-approved leave)	Manpower (60%)	Pro-rata deduction of manpower payment for unapproved absence (max 5% of the manpower component for the month)
3	Resource Replacement	Replace with equal/higher qualified personnel within 45 days	Manpower (60%)	5% deduction of manpower billing until replacement is deployed (max 5% of the manpower component for the month)
4	Applicability Assessment Reports	Submit within 15 working days of problem-statement handover	Manpower (60%)	2% deduction of the concerned member's monthly billing per delayed report (max 5% of the manpower component for the month)

* For the purposes of SLA 4, 'problem-statement handover' means a written communication issued by NeGD or the concerned Government entity to the agency formally transmitting the problem statement for a specific engagement. The date of such written communication shall serve as the start of the 15-working-day period.

** The penalty under SLA 3 applies during the replacement period. Where replacement is not completed within the 45-day timeline, the penalty under clause 7.5 (Penalty for Delay in Replacement) shall apply in addition for each week of further delay.

- 6.1 The manpower-linked SLAs set out in the table above apply to Work Orders issued under RDRs routed through NeGD. For engagements where a Ministry, Department, State Government, or PSU engages an empanelled agency independently using the published rate card, the payment structure, performance evaluation framework, and applicable SLAs shall be as determined by that Government entity in accordance with its own procurement and financial rules. The SLA matrix above may be adopted by such entities as a reference framework.
- 6.2 These Service Level Agreements (SLAs) shall apply to all empanelled agencies executing Work Orders issued under RDRs routed through NeGD under this LoE and will govern payments linked to manpower deployment. All manpower-linked penalties shall be deducted only from the monthly manpower payment and shall be capped at 5% of the monthly manpower component.
- 6.3 SLAs will be reviewed at the end of each quarter against the defined parameters, and the corresponding deductions — where applicable — will be applied to the agency's invoices for Work Orders routed through NeGD as per the SLA matrix above. Consistent adherence to SLAs will be a key determinant of continued engagement, renewal of Work Orders, and eligibility for future assignments.
- 6.4 Deliverable-linked SLAs, their corresponding timelines, and applicable penalties shall be defined by NeGD or the concerned Government entity in the respective RDR or Work Order and communicated to the selected agency in writing at or before the time of Work Order issuance. Deliverable-linked penalties, once finalised and notified in writing, shall be applied and adjusted against the quarterly payable amount as per the terms of the respective RDR or Work Order.
- 6.5 NeGD retains the right to introduce additional SLAs as per project requirements through the applicable RFQ or RDR, subject to mutual agreement with the empanelled agency and alignment with the payment terms defined in that RDR or RFQ. SLA penalties are applied per resource, as the metrics and penalties are defined at the individual resource performance level.

7. RESOURCE REPLACEMENT AND DEFAULT POLICY

- 7.1 Replacement Triggers: During the assignment, the substitution of key staff identified for the assignment will not be allowed unless such substitution becomes unavoidable to overcome undue delay or the changes are critical to meet the obligation. In such circumstances, the selected Agency can do so only with the prior written concurrence of NeGD or the Government Entity and by providing replacement staff of the same level of qualifications and competence.
- 7.2 If NeGD or the Government Entity is not satisfied with the substitution, it reserves the right to terminate the contract issued under the relevant RDR or RFQ and withhold payments pertaining only to that specific RDR or RFQ, including any advance payments made for the concerned resource. No recovery shall be made for payments relating to past RDRs, RFQs, or previously completed assignments. NeGD or the Government Entity further reserves the unconditional right to require the selected Agency to replace any deployed team member with another individual possessing the qualifications and competencies stipulated by NeGD or the Government Entity, at any time during the assignment.



- 7.3 Agency shall provide suitable replacement in cases which ensures business continuity. NeGD or the Government Entity reserves the right to request replacement of any deployed resource under the following circumstances: (a) Non-Performance — Repeated failure to deliver assigned tasks or consistent underperformance as per evaluation metrics; (b) Absenteeism — Unauthorised absence exceeding five (5) consecutive working days; (c) Attrition or Resignation — Voluntary resignation or withdrawal from engagement; (d) Violation — Breach of information security, confidentiality, or code of conduct guidelines; (e) Unsuitability — Lack of technical competency or misalignment with project requirements.
- 7.4 Replacement Timeline: The agency shall deploy a replacement resource within forty-five (45) days of receiving written notification from NeGD or the concerned Government Entity upon selection of a resource from the specific RDR. The replacement must have qualifications and experience equal to or higher than those of the outgoing resource. During transition, the outgoing resource must ensure handover of work, documentation, and credentials to the replacement.
- 7.5 Penalty for Delay in Replacement: For every week of delay beyond the 45-day period, a penalty equivalent to one week of the replaced resource's billing rate shall apply, up to a maximum of four (4) weeks. If a suitable replacement is not provided within this period, NeGD or the concerned Government Entity reserves the right to: (a) engage a replacement from another empanelled agency; and (b) deduct the corresponding cost from the defaulting agency's payments or PBG. Any other Government entity- specific interpretation or graded penalty slabs, if required, will be detailed in the respective RDRs or RFQs.
- 7.6 Voluntary Withdrawal: If an agency voluntarily withdraws a deployed resource without NeGD's or the concerned Government Entity's written consent, NeGD or the concerned Government Entity will impose penalties and withhold payments for the affected duration as per the terms of this LoE. Repeated instances of withdrawal may lead to suspension or termination of empanelment.

8. PERFORMANCE MANAGEMENT AND REVIEW

- 8.1 Performance Evaluation: Each deployed resource shall undergo periodic evaluation based on predefined Key Performance Indicators (KPIs) covering: (a) Technical competency and output quality; (b) Adherence to timelines; (c) Responsiveness and collaboration; (d) Reporting accuracy and documentation; (e) Compliance with security and ethical norms. Performance shall be reviewed quarterly and rated as Outstanding, Satisfactory, or Needs Improvement by NeGD or the concerned Government Entity's designated review authority.
- 8.2 Corrective Action: For resources rated as Needs Improvement, the agency shall submit a Corrective Action Plan within 15 working days of notification from NeGD or the concerned Government Entity's designated review authority. Persistent underperformance beyond two review cycles shall warrant resource replacement.
- 8.3 Agency-Level Review: NeGD will conduct an annual performance review of all empanelled agencies based on: responsiveness to deployment requests; quality of manpower supplied; timeliness of replacements; and compliance with reporting and governance requirements. Agencies rated Unsatisfactory may face reduced allocations, temporary suspension, or non-renewal of empanelment.



9. ACTIVE PARTICIPATION AND MINIMUM RESPONSIVENESS REQUIREMENT

- 9.1 All empanelled agencies are expected to remain reasonably responsive to RFQs and RDRs issued under this LoE and to participate wherever they have relevant capability and capacity.
- 9.2 Agencies that repeatedly do not respond or decline opportunities without reasonable justification may have this taken into account by NeGD during periodic performance reviews and, where necessary, in decisions relating to continuation or renewal of empanelment in line with the performance and termination provisions of the RFE.

10. CONFIDENTIALITY AND DATA SECURITY

- 10.1 Confidential Information: All information, datasets, models, or other intellectual property provided by NeGD or the concerned Government Entity shall be treated as confidential. Neither the agency nor its personnel shall, without prior written consent of NeGD or the concerned Government Entity: (a) disclose such information to third parties except to its subcontractors, agents, consultants, auditors, without prior consent of NeGD or the concerned Government Entity; or (b) use it for purposes other than project execution. In the event of NeGD or the concerned Government Entity receiving or being given access to the Agency's Confidential Information, NeGD or the concerned Government Entity shall have the same obligations with respect to such information as does the Agency. This restriction does not limit the right to use information: obtained from another source without restriction; in the possession of the receiving party prior to its receipt, without an obligation to maintain confidentiality; that becomes generally known to the public without violation of the Agreement; independently developed by the receiving party without the use of confidential Information and without the participation of individuals who have had access to confidential information; or required to be provided under any law or process of law.
- 10.2 Security Controls: The agency shall comply with: (a) MeitY Security Policy and Guidelines; (b) ISO 27001 Information Security Standards; (c) any additional project-specific security controls defined by NeGD or the concerned Government Entity. The organisation will sign the NDA in which all the resources will be covered.
- 10.3 Data Residency and Storage: All data generated or processed under this engagement shall reside within India in Government-approved infrastructure or MeitY-empanelled cloud environments. Transfer of any data outside India is strictly prohibited without NeGD's or the concerned Government Entity's written approval.
- 10.4 Incident Reporting: In case of a data breach or security incident, the agency must: (a) report the event to NeGD or the concerned Government Entity within 24 hours of detection; (b) conduct a root-cause analysis; and (c) submit a corrective-action report within 7 working days.
- 10.5 Post-Contract Obligations: Confidentiality and security obligations shall survive for five (5) years after expiry or termination of empanelment.
- 10.6 Record Retention: The agency shall maintain all records (timesheets, payroll, deployment logs, and project documentation) for at least six (6) years after completion of the engagement. Such records shall be available for inspection upon request.



11. INTELLECTUAL PROPERTY RIGHTS (IPR)

- 11.1 The intellectual property rights in all methodologies, processes, analysis and recommendations (including but not limited to any presentations made in respect thereof and/or related thereto), frameworks, know-how and techniques used by the Agency in providing Services hereunder that (a) existed prior to delivery of the Services, and/or (b) are developed during and/or independently of providing the Services, along with all improvements, enhancements and modifications to any or all of the foregoing shall vest with the Agency.
- 11.2 Neither Party shall by virtue of this arrangement gain any right to intellectual property of the other Party. By entering into this arrangement, Parties hereto agree not to use the other Party's intellectual property without its prior written consent.
- 11.3 The Intellectual Property Rights (IPR) in respect of the work carried out by the deployed resources shall vest with the Procuring Entity — being NeGD for engagements routed through NeGD, and the concerned Government Entity for engagements executed independently by that entity.
- 11.4 All the IPR in the third-party software used in providing services including those forming part of or incorporated into the deliverables shall remain with the respective third-party owners/Agency's licensor, and the Procuring Entity shall have user rights in accordance with the end user license agreement (EULA) as applicable.
- 11.5 All deliverables, outputs, plans, drawings, specifications, designs, reports, and other documents and software submitted by the Agency under this Contract shall become and remain the property of the Procuring Entity and subject to laws of copyright and must not be shared with third parties or reproduced, whether in whole or part, without the Procuring Entity's prior written consent. The Agency shall, not later than upon termination or expiration of this Contract, deliver all such documents and software to the Procuring Entity together with a detailed inventory thereof. The Agency shall indemnify the Procuring Entity against any breach of third party's IPR. The Agency shall maintain confidentiality and secrecy of the Procuring Entity's information provided to it or that it comes across during execution of the Contract. All source code, build scripts, and related materials shall be submitted in a readable, buildable, and complete form, and any additional escrow format requirements shall be as directed by the Procuring Entity.
- 11.6 Where the Agency uses proprietary software, tools, or scripts essential for the operation or modification of the deliverables, the Agency shall: (a) disclose such tools in writing during the engagement; and (b) grant the Procuring Entity a non-exclusive, royalty-free, perpetual, worldwide licence to use, modify, and maintain such tools or scripts for the contract's purposes.
- 11.7 The Agency shall deposit the source code and relevant documentation for all non-proprietary components on the Government of India's OpenForge Portal within thirty (30) days of delivery or milestone completion. Such source code shall comply with the Government of India's Open-Source Software Policy (2015) and be licensed under an approved open-source licence. Where any portion of the source code is designated as Proprietary Code, such designation must be disclosed in writing within fifteen (15) days of contract signing, and all such Proprietary Code shall be deposited in escrow with the OpenForge Portal or a mutually agreed third-party Escrow Agent within thirty (30) days of deployment or delivery. The detailed terms of the escrow arrangement, including release

- triggers and post-release licence terms, shall be as specified in Section 7.17 of the RFE and its corrigenda, which is incorporated by reference into this LoE.
- 11.8 The obligations under this Clause shall survive the expiration or termination of the Contract and shall be binding upon successors, assignees, consortium members, and subcontractors involved.
- 11.9 Residuary rights and non-exclusivity obligations applicable to the parties under this LoE shall be as set out in the RFE and the corrigenda issued thereunder.

12. CONFLICT OF INTEREST AND ETHICAL COMPLIANCE

- 12.1 All empanelled agencies are bound by the Integrity Pact executed during the RFE process. These obligations shall continue to apply throughout the tenure of empanelment and in respect of every engagement thereunder.
- 12.2 For each engagement under this LoE, the empanelled agency shall submit a fresh Conflict-of-Interest declaration confirming the absence of any conflict in respect of that specific engagement, in the form prescribed by the procuring entity.
- 12.3 Agencies must ensure that all AI services and models deployed under this LoE adhere to MeitY's Responsible AI Guidelines and any updates formally notified thereto.

13. DATA GOVERNANCE, COMPLIANCE AND SECURITY ADHERENCE

- 13.1 Data Handling and Ownership: (a) All datasets accessed or generated under this empanelment shall remain the property of NeGD/DIC or the concerned Government entity. (b) Vendors will be granted restricted, project-specific access only for the duration of engagement. (c) Any data replication, export, or sharing outside the approved environment shall be prohibited.
- 13.2 Data Classification and Sensitivity: (a) Data shall be classified as Public, Internal, Confidential, or Restricted as per the Government of India Data Classification Policy. (b) Handling protocols, encryption levels, and access roles must align with the classification level assigned by the data owner.
- 13.3 Data Protection and Privacy: (a) Vendors shall comply with the applicable Data Privacy Laws and MeitY AI Governance Guidelines and any updates thereto. (b) Personal data processing shall follow principles of purpose limitation, consent-based usage, and data minimization. (c) Anonymization or pseudonymization shall be mandatory where personal identifiers are not essential for model training.
- 13.4 Data Storage and Residency: (a) All project data, model checkpoints, and inference outputs must be stored and processed within India on MeitY-approved cloud infrastructure (NIC, MeghRaj, or empanelled CSPs). (b) Data-at-rest shall be encrypted using AES-256 or equivalent/higher; data-in-transit using TLS 1.3 or equivalent/higher.
- 13.5 Data Lifecycle Management: (a) Clear procedures shall be followed for data ingestion, curation, retention, archival, and deletion. (b) Upon project closure, vendors must submit a data handover and sanitization certificate confirming deletion of all local or temporary copies.
- 13.6 Model and Dataset Governance: (a) All AI models trained or fine-tuned under this empanelment shall include metadata on training data source, version, preprocessing



steps, and evaluation metrics. (b) Model reproducibility and lineage shall be maintained using version control and model lifecycle management tools. (c) Models using generative components shall include bias, hallucination, and safety evaluation reports.

14. INDEMNIFICATION

- 14.1 The Agency shall indemnify, defend, and hold harmless NeGD and/or the concerned Government Entity (as applicable to the respective engagement), their respective officers, employees, and representatives from any direct losses, claims, damages, liabilities, and reasonable costs (including attorney's fees) arising out of: (i) the Agency's gross negligence, willful misconduct or fraud; (ii) any third-party claim alleging that the Deliverables or services provided by the Agency infringe any third party intellectual property rights.
- 14.2 Limitation of Indemnity Exposure: Notwithstanding anything to the contrary, the total aggregate liability of the Agency under this indemnification clause shall be capped at an amount not exceeding one (1) times the total fees payable to the Agency under the respective RDR/RFQ/Work Order from which the claim arises.
- 14.3 Conduct of Defence: NeGD or the concerned Government Entity shall provide the Agency prompt written notice of any indemnifiable claim. The Agency shall assume the defence of such claim, provided that NeGD or the concerned Government Entity shall have the right to participate in the defence at its own expense. The Agency shall not enter into any settlement or compromise that admits liability or imposes obligations on NeGD or the concerned Government Entity without prior written consent.
- 14.4 Agency shall have no obligations with respect to any Infringement Claims to the extent that the Infringement Claim arises or results from: (a) Agency's compliance with NeGD's or the concerned Government Entity's specific technical designs or instructions (except where Agency knew or should have known that such compliance was likely to result in an Infringement Claim and did not inform NeGD or the concerned Government Entity); (b) inclusion in a Deliverable of any content or materials provided by NeGD or the concerned Government Entity; (c) modification of a Deliverable after delivery by Agency to NeGD or the concerned Government Entity if such modification was not made by or on behalf of the Agency; (d) operation or use of some or all of the Deliverable in combination with products, information, specification, instructions, data, or materials not provided by Agency. (e) use of the Deliverables for any purposes for which the same have not been designed or developed or other than in accordance with any applicable specifications or documentation provided under the applicable Statement of Work by the Agency; (f) use of a superseded release of some or all of the Deliverables or NeGD's or the concerned Government Entity's failure to use any modification of the Deliverable furnished under this Agreement including, but not limited to, corrections, fixes, or enhancements made available by the Agency.
- 14.5 In the event that NeGD or the concerned Government Entity is enjoined or otherwise prohibited, or is reasonably likely to be enjoined or otherwise prohibited, from using any Deliverable as a result of a claim for which Agency is required to indemnify NeGD under this section according to a final decision of the courts or in the view of Agency, Agency may at its own expense: (i) procure for NeGD or the concerned Government Entity the right to continue using such Deliverable; (ii) modify the Deliverable so that it becomes

non-infringing; (iii) replace the Deliverable with work product that is equal in capacity and performance but is non-infringing; or (iv) if such measures do not achieve the desired result and infringement is established, refund the fees effectively paid for that Deliverable subject to depreciation on a straight-line basis over a 5-year period.

15. LIMITATION OF LIABILITY

- 15.1 Neither party shall be liable to the other for any indirect, consequential, special, or incidental loss, damage, or expense (including, without limitation, loss of profits, loss of contracts, loss or corruption of data, loss or damage to reputation and/or goodwill, or opportunity costs) arising under or in connection with this Agreement. The total aggregate liability of the Agency under this clause and contract shall not exceed the total contract value.
- 15.2 The limitations of liability shall not apply to: (a) losses or damages arising from a party's fraud, willful misconduct, or gross negligence; (b) breach of confidentiality obligations; (c) violation of applicable laws, including under any statute, regulation, or mandatory legal provision including data protection obligations. Such cases shall be subject to liability as determined under applicable laws.
- 15.3 The Agency shall be excused and not be liable for any delay or failure to perform the services to the extent that such delay or failure has arisen as a direct result of any delay or failure by NeGD or the concerned Government Entity to perform its obligations. In such events, the Agency shall be allowed an extension of time equal to the duration of the delay. Any additional costs claimed by the Agency arising from such delays shall be subject to prior written approval by NeGD or the concerned Government Entity through the applicable change-control procedure and shall not be automatically invoiceable.

16. NON-DISCLOSURE AGREEMENT

- 16.1 All deployed resources shall sign a Non-Disclosure Agreement (NDA) with NeGD or the concerned Government Entity, for all resources, before onboarding on any engagement, in accordance with Section 6.14.2 of the RFE.

17. FORCE MAJEURE

- 17.1 If at any time, during the continuance of the contract, the performance in whole or in part by either party of any obligation under the contract is prevented or delayed by reasons of any war, hostility, acts of public enemy, civil commotion, sabotage, fires, floods, explosions, epidemics, quarantine restrictions, strikes, lockouts, acts of God (hereinafter referred to as 'events'), provided notice of happenings of any such event is duly endorsed by the appropriate Government authorities wherever applicable, neither party shall, by reason of such event, be entitled to terminate the contract, nor shall either party have any claim for damages against the other in respect of such non-performance or delay, provided the performance and/or delivery is resumed as soon as practicable after such event has come to an end or ceased to exist.
- 17.2 That upon being affected by the force majeure events, the affected party shall: (a) Notify the other party in writing within seven (7) days of occurrence; (b) Specify cause, duration,

- and likely impact on obligations; and (c) Provide regular updates until normalcy is restored. The period between the occurrence and cessation of such an event will be excluded while calculating the period during which the Party must perform its obligations.
- 17.3 The decision of the Procuring Entity as to whether the performance or delivery has so resumed or not shall be final and conclusive, provided further that if the performance in whole or in part or any obligation under the contract is prevented or delayed by reason of any such event for a period exceeding ninety (90) days, either Party may at its option terminate the contract without any obligation to compensate. However, the Agency shall be entitled to receive payments for all services rendered by it under the Agreement. Any delay or hindrance in delivery by the Agency as a result of the occurrence of any Force Majeure Event to its suppliers or subcontractors shall be deemed as a Force Majeure Event occurring to the Agency.
- 17.4 Consequences of Force Majeure: (a) Neither party shall be liable for failure or delay caused by Force Majeure. (b) The affected period shall be excluded in computing contractual timelines. (c) Payments for all deliverables and services shall be processed as per standard procedure.
- 17.5 Termination due to Extended Force Majeure: If a Force Majeure event continues beyond sixty (60) days, either party may terminate the agreement without penalty by giving fifteen (15) days' written notice.

18. TERMINATION / WITHDRAWAL

- 18.1 Termination by NeGD: NeGD may terminate the empanelment or any work order issued under the relevant LoE under the following conditions: (a) Breach of contractual terms or submission of false or misleading information by the agency; (b) Failure to meet the empanelment conditions within the prescribed timelines; (c) Misleading claims regarding the status of empanelment; (d) Failure to perform any Work Order to the satisfaction of NeGD as per the agreed scope, or the concerned Government Entity, in which case such dissatisfaction has been formally communicated to NeGD; (e) Failure to deliver within the stipulated period(s) specified in the contract or any extension approved by NeGD or the concerned Government Entity; (f) Failure to deploy, maintain, or replace qualified manpower as required; (g) Persistent non-performance or non-compliance with standard rate conditions; (h) Misuse or unauthorised disclosure of confidential information; (i) Blacklisting or disciplinary action by any Government entity; (j) Failure to comply with any other obligation(s) under the agreement. NeGD may also terminate the contract by giving four (4) weeks' written notice if the selected bidder is declared bankrupt or insolvent by a court/tribunal of competent jurisdiction. Such termination shall be without compensation, and without prejudice to any rights or remedies already accrued to NeGD or the concerned Government Entity.
- 18.2 Upon termination for breach, the bidder shall hand over all documents, data, materials, and access credentials belonging to NeGD or its stakeholders within seven (7) days from issuance of the termination notice. The empanelled agency shall support orderly transition of services and submit/execute an exit management plan as directed by NeGD.
- 18.3 Termination for Convenience: NeGD may terminate empanelment at any time by giving 60 days' written notice without assigning any reason. Payments for completed services up to the effective date will be made on a pro-rata basis.



- 18.4 Termination by the Agency: An empanelled agency may terminate its empanelment by giving 60 days' written notice, subject to completion of ongoing assignments and approval from NeGD.
- 18.5 Consequences of Termination: (a) Upon termination, the agency shall immediately cease representing itself as empanelled with NeGD. (b) All confidential material, credentials, and access rights must be returned within 7 working days. (c) For NeGD-routed engagements, NeGD reserves the right to invoke the PBG in case of termination due to breach or default. For engagements executed directly by eligible Government entities, security instruments including PBGs shall be invoked as per the terms of the applicable contract. (d) NeGD's right to terminate the agreement will be in addition to the penalties and liquidated damages provided for under this LoE and, where applicable, under the respective RFQ or RDR.

19. PERFORMANCE BANK GUARANTEE (PBG)

- 19.1 For every RFQ/RDR issued by or through NeGD under this empanelment, the selected agency shall furnish a Performance Bank Guarantee (PBG) of three percent (3%) of the total value (excluding taxes) of the manpower deployment under that RFQ/RDR. For engagements executed directly by eligible Government entities, security requirements including any PBG shall be governed by the terms of the applicable contract issued by that entity.
- 19.2 Each PBG shall remain valid for one hundred eighty (180) days beyond the scheduled completion of the deployment period specified under the respective RFQ/RDR, and must be issued by a Scheduled Commercial Bank.
- 19.3 The PBG associated with a particular RFQ/RDR may be invoked by NeGD/Government organisations in cases of: (1) Breach of contractual obligations under that deployment order; (2) Failure to deploy resources within agreed timelines; (3) Material non-performance or repeated SLA violations related to that RFQ/RDR; (4) Withdrawal or attrition of accepted resources without justified cause; (5) Any other non-compliance materially affecting service delivery under that RFQ/RDR.
- 19.4 Upon satisfactory completion of obligations under the respective RDR or RFQ, settlement of all dues, and submission of required closing documentation (including a No Claim Certificate) by the agency, NeGD or the concerned Government Entity shall release the corresponding PBG within sixty (60) days.

20. DISPUTE RESOLUTION AND ARBITRATION

This dispute resolution mechanism applies to disputes arising in connection with engagements routed through NeGD. For engagements where eligible Government entities engage empanelled agencies independently, disputes shall be resolved under the dispute resolution framework specified in the applicable contract issued by that entity.

- 20.1 Good Faith Negotiation: a. Any disputes or differences whatsoever arising between the parties out of interpretation or application of this LOE or in connection with this contract or in discharge of any obligation arising out of the contract (whether during the progress of work or after completion of such work and whether before or after the termination of this contract, abandonment or breach of this contract), shall be, as far as possible, be settled



amicably and resolved through mutual consultations or negotiations. The Party raising a dispute shall address to the other Party a notice requesting an amicable settlement of the dispute within seven (7) days of receipt of the notice. The matter will be referred for negotiation between Procuring Entity officials and the Authorized Official of the Bidder. The matter shall then be resolved between them and the agreed course of action documented within a further period of 15 days.

- 20.2 Arbitration: Any disputes or differences whatsoever arising between the parties out of interpretation or application of this RFQ or RDR or in connection with this contract (whether during the progress of work or after completion of such work and whether before or after the termination of this contract) shall, as far as possible, be settled amicably. If the dispute is not amicably resolved, a Party may refer the matter to arbitration. The arbitration shall be held in accordance with the provisions of the Arbitration and Conciliation Act, 1996 (as amended from time to time) and under the aegis of the Rules of the Delhi International Arbitration Centre, New Delhi.
- 20.3 The 'Arbitration Notice' should set out the disputes between the Parties, and the intention of the aggrieved Party to refer such disputes to arbitration. All notices by one Party to the other in connection with the arbitration shall be in writing and be made as provided in this RFE.
- 20.4 The dispute shall be resolved by a three-member Tribunal, with each party nominating its Arbitrator and the two nominated Arbitrators jointly nominating a Presiding Arbitrator. In the event of failure of either party to nominate its Arbitrator, the Tribunal shall be constituted in terms of the provisions of the Arbitration and Conciliation Act, 1996 (as amended from time to time).
- 20.5 The Tribunal shall hold its sitting at the Delhi International Arbitration Centre, New Delhi. The arbitration proceedings shall be conducted in the English language. The cost of the Arbitration shall be equally borne by both the Parties unless the award otherwise provides. The arbitration award shall be final, conclusive and binding upon the Parties. The Parties agree to have their dispute and differences resolved in accordance with the provisions of Section 29B of the Arbitration and Conciliation Act, 1996.
- 20.6 The bidder shall continue work under the Contract and the rights and obligations of the Parties shall remain in full force and effect, pending the award in any arbitration proceedings hereunder.
- 20.7 Jurisdiction: All disputes, claims, or proceedings arising out of or relating to this LoE (RFQ or RDR) and subsequent agreements shall be subject to the exclusive jurisdiction of the Courts at Delhi, India. For disputes arising exclusively from contracts between empanelled agencies and eligible Government entities other than NeGD, jurisdiction shall be as specified in the applicable contract between that entity and the agency.

21. APPLICABLE LAW

- 21.1 This LoE and all subsequent agreements shall be governed by and construed in accordance with the laws of India. The Parties agree that this Agreement shall be subject to, and governed by, all applicable data privacy laws, Labour Laws, the Indian Contract Act, 1872, any other relevant statutory provisions, and the Government procurement policies, compliance with which shall be mandatory. Any interpretation or modification shall align with Digital India and MeitY guidelines.



22. NOTICES AND COMMUNICATIONS

- 22.1 All notices under this LoE shall be in writing and delivered by registered post, speed post, or official email. Notices shall be deemed served: (a) on actual receipt (for hand delivery); or (b) on the fifth working day from dispatch (for registered post).
- 22.2 The official contact for correspondence shall be: Director (Program Management and HR), National e-Governance Division (NeGD), Digital India Corporation, Ministry of Electronics and Information Technology, Electronics Niketan, 6 CGO Complex, Lodhi Road, New Delhi – 110003. Email: director.pm@digitalindia.gov.in
- 22.3 For engagements executed directly with other eligible Government entities, notices relating to those specific engagements shall be addressed to the nodal officer designated in the applicable RFQ, RDR, or Work Order issued by that entity.

23. MISCELLANEOUS PROVISIONS

- 23.1 Assignment: The empanelled agency shall not assign or subcontract any part of the work without NeGD's or the concerned Government Entity's written consent.
- 23.2 Relationship: Nothing in this LoE (along with any RFQ or RDR) establishes a relationship of master-servant, principal-agent, or partnership between NeGD or any concerned Government Entity and the agency.
- 23.3 Severability: If any clause of this document is found invalid, the remaining provisions shall remain in effect.
- 23.4 Waiver: Failure of either party to enforce any right shall not constitute a waiver of future enforcement.
- 23.5 Entire Understanding: This LoE, its annexures, the RFE (Tender ID: 2025_DIT_885957_1), all corrigenda issued thereunder, and subsequent engagement-specific RFQs, RDRs, and Work Orders constitute the entire understanding between NeGD and the empanelled agencies.

24. GOVERNING DOCUMENTS

- 24.1 The terms of the RFE (Tender ID: 2025_DIT_885957_1) and all corrigenda issued thereunder are incorporated by reference into this LoE and shall be read together with it.

25. EMPANELMENT USAGE REPORTING

- 25.1 Empanelled agencies engaging with Government entities under this LoE shall intimate NeGD of such engagements, providing basic details as may be prescribed, to enable NeGD to maintain a record of engagements under this empanelment. Such intimation shall be made within thirty (30) days of commencement of each engagement and within thirty (30) days of its completion.



- 25.2 NeGD shall maintain the information so received in accordance with applicable confidentiality obligations, including any non-disclosure agreements in force between the empanelled agency and the concerned Government entity.
- 25.3 Nothing in this clause shall require disclosure of information that is protected under a non-disclosure agreement between the empanelled agency and the concerned Government entity, unless such disclosure is consented to by that entity.
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For and on behalf of National e-Governance Division



(Aditi Singh)

Director, National e-Governance Division

Date: 22 April 2026

अदिति सिंह / Aditi Singh
निदेशक / Director
राष्ट्रीय ई-गवर्नेंस प्रभाग
National eGovernance Division
इलेक्ट्रॉनिक्स और सूचना प्रौद्योगिकी मंत्रालय
Ministry of Electronics and Information Technology